Education & Skills Funding Agency

Cheylesmore House
Quinton Road
Coventry
CV1 2WT

T 0345 377 5000

THIS TEST VARIATION is made on the date the Variation is digitally signed by the Training Provider on the Manage your education and skills funding service ("the Variation Date").

Termination Date: 1 October 2021.

BETWEEN: -

(1) **THE SECRETARY OF STATE FOR EDUCATION** acting through the Education and Skills Funding Agency an Executive Agency of the Department for Education of Cheylesmore House, Quinton Road, Coventry, CV1 2WT ("**the ESFA")**; and

(2) **10017863 Co Ltd** Company No: AA017863 (10017863) whose registered office is situated at 10 Albyn Place, Edinburgh, EH2 4NG ("**the Training Provider**").

RECITALS: -

(A) The ESFA and the Training Provider entered into an Apprenticeship Agreement for the provision of Apprenticeship Training with the ESFA's reference number of ESFA-124578 ("**Original Contract**").

(B) The ESFA and the Training Provider have agreed to vary the terms of the Original Contract as set out in this Variation.

(C) The ESFA's reference number for this Variation is 1.

IT IS AGREED as follows: -

1. **CONSIDERATION**

In consideration of each of the parties entering into this Variation (such consideration being agreed by the parties to be good and valuable consideration, the adequacy and sufficiency of which is hereby acknowledged and agreed), the parties have agreed to vary the Original Contract in accordance with Clause 30 (Variation) of the Original Contract.

2. **VARIATION OF THE ORIGINAL CONTRACT**

2.1 The parties agree with effect from the Variation Date the Original Contract shall be varied as set out in Annex 1 attached.

2.2 Subject to Annex 1, the Original Contract as amended by the previous variations shall continue in full force and effect in all respects.

2.3 In addition to the amendments set out in Annex 1, the Original Contract shall be construed and interpreted with such further consequential amendments as are necessary to give effect to the amendments set out in Annex 1 of this Variation, as if such further amendments were also expressly set out in Annex 1.

2.4 Except, as expressly provided for in Clause 2.3 and Annex 1, the parties agree that no other liabilities, financial or otherwise, shall accrue to the ESFA because of this Variation.

3. SEVERABILITY

The provisions of this Variation are intended by the parties to be severable in the event that any part of it is held to be illegal or unenforceable (in whole or in part) and such part shall not affect the validity and enforceability of the remaining provisions or the remainder of the affected provision under this Variation.

4. AUTHORITY AND COSTS

Each party undertakes that it has full power and authority to enter into and shall be responsible for its own costs arising in relation to this Variation.

5. THE CONTRACTS (RIGHTS OF THIRD PARTIES) ACT 1999

5.1 Subject to Clause 5.2 below, this Variation is not intended to create any benefit, claim or rights of any kind whatsoever enforceable by any person who is not a party to this Variation. Accordingly, the parties confirm that no term of this Variation is enforceable under the Contracts (Rights of Third Parties) Act 1999 by a person who is not a party to this Variation.

5.2 It is the intention of the parties that any other department, officer or agency of the Crown, may as required from time to time act as the ESFA's agent in enforcing the ESFA's rights under this Variation.

6. GOVERNING LAW AND JURISDICTION

The parties agree that this Variation and any dispute arising under or in any way connected with the subject matter of this Variation (whether of a contractual or tortious nature or otherwise) shall be governed by and construed in accordance with the laws of England, and the parties submit to the jurisdiction of the English Courts.

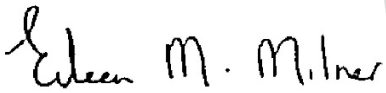
TEST

7. ACCEPTANCE BY THE TRAINING PROVIDER

The Person that accepts this Variation via the Manage your education and skills funding service on behalf of the Training Provider represents and warrants to the ESFA that the Training Provider has read and understood this Variation, that the Training Provider agrees to be bound by this Variation and that he/she is duly authorised to enter into this Variation and legally bind the Training Provider.

This Variation is made on the date the Variation is digitally signed by the Training Provider on Manage your education and skills funding service.

SIGNED FOR AND ON BEHALF OF
THE SECRETARY OF STATE FOR EDUCATION
acting through the Education and Skills Funding Agency
by Eileen Milner, Chief Executive of the Education and Skills Funding Agency



TEST

ANNEX 1

VARIATIONS TO ORIGINAL CONTRACT

All references to Clauses in this Annex 1 are to Clauses in the Original Contract.

A summary of the main changes are detailed below. Where new clauses have been added and/or existing clauses deleted, subsequent clauses and cross-referencing to clauses have been re-numbered throughout the Agreement. In addition, URL's have been amended where appropriate to ensure that the URL points to the updated resource/publication on GOV.UK. You must refer to your revised Agreement and associated Schedule which incorporate all amendments.

A copy of the revised ESFA Apprenticeship Agreement for Training Providers, Spring 2020, Version 2.0, which incorporates the amendments detailed below, is attached to this Variation.

1. Definitions

Amend the definition of "Data Protection Laws" as follows:

"Data Protection Laws"	means the Data Protection Act 2018 and **Privacy and** Electronic Communications (EC Directive) Regulations 2003 and any other data protection laws and regulations applicable in the UK (or in any relevant part thereof), including the General Data Protection Regulation (EU) 2016/679 or similar and any codes of practice, guidelines and recommendations issued by the Information Commissioner's Office, any replacement body or other relevant supervisory authority, all of which are current at the time of any data processing by the Service Provider (and in the event of any conflict between the Data Protection Laws and Law, Data Protection Laws shall take precedence).

Amend the definition of "High Needs Apprentice" as follows:

"High Needs Apprentice"	means an Apprentice aged 16 to 18 **with high levels of Special Educational Needs and Disability (SEND), supported with top-up funding from the high needs budget,** or any young person aged 19 to 25 subject to an Education Health and Care Plan, who requires additional support **costing over £6,000**;

TEST

10. Freedom of Information and Confidentiality

Amend Clause 10.3 as follows:

10.3. The Training Provider shall take all necessary precautions to ensure that all Confidential Information obtained from the ESFA is treated as confidential and not disclosed (without prior approval **from the ESFA**) or used other than for the purposes of this Agreement by any of its Training Provider Related Parties.

20. Submission of Apprentice Data through the ILR

Amend Clause 20.1 as follows:

20.1. The Training Provider must submit promptly to the ESFA an accurate ILR in relation to each individual Apprentice in accordance with the **Individualised Learning Record (ILR) technical documents, guidance and requirements** as amended and updated from time to time.

Amend Clause 20.2 as follows:

20.2. The Training Provider can view the **Individualised Learning Record (ILR) technical documents, guidance and requirements** by visiting the website **https://guidance.submitlearnerdatabeta.fasst.org.uk/.**

Amend Clause 20.11 as follows:

20.11. The Training Provider must update the course information for Training funded by the ESFA at https://coursedirectory.nationalcareersservice.org.uk/ .

23. Withholding, Suspension and Repayment of Funding

Amend Clause 23.1.5 as follows:

23.1.5. the ESFA has concerns about the completeness, accuracy or promptness of the data submitted by the Training Provider on the ILR in relation to this Agreement or, **subject to Clause 23.2 any other agreement**;

Add Clause 23.2 as follows:

23.2. If under Clause 23.1.5 some or all of the ESFA's concerns about the completeness, accuracy or promptness of data relate to data submitted under an agreement other than this Agreement, then such concerns are relevant to the extent that they undermine the ESFA's confidence in the Training Provider's ability to comply with its obligations to submit complete or accurate or prompt data in relation to this Agreement.

TEST

39. The Training Provider's Feedback and Complaints Procedure

Add Clause 39.5 as follows:

39.5. The Training Provider will ensure that it has in place and complies with an effective whistleblowing procedure, approved by the body responsible for the management of the Training Provider, whereby staff may raise in confidence concerns about possible malpractice without fear of victimisation, subsequent discrimination or disadvantage. The procedure must be published on the Training Provider's public-facing website. The Training Provider will regularly review the procedure, including securing approval from the body responsible for the management of the Training Provider of any amended procedure.

Schedule 1 Data Protection

Amend Clause 5 sub clause (b) as follows:

(b) receives a request to rectify, block or erase any Personal Data. Notification in such cases should be given via the **nominated contact**;

Amend Clause 15 as follows:

15. The Processor will comply with any further written instructions or additional conditions from the **ESFA's** Controller in relation to the data processing.

Processing, Personal Data and Data Subjects

Amend the Nature and purposes of the Processing as follows:

Nature and purposes of the Processing	The nature and purposes of the processing is defined in the ESFA privacy notice. https://www.gov.uk/government/publications/esfa-privacy-notice **The processing of data in this Agreement refers to the submission of ILR data to the ESFA only and the processing of data that is inputted into the Apprenticeship Service. The processing does not include the processing of Personal Data collected from the Apprentices by the Training Provider for the purposes of enrolling Apprentices onto programmes or delivering education or training, e.g. e-portfolios.** The Training Provider will be required to submit the data to the ESFA as set out in Clause 20 (Submission of Apprentice Data through the ILR) of this Agreement.

TEST